



shakuntala

Pa. - 1

AAR 13 of 2024

IN THE HIGH COURT OF BOMBAY AT GOA
APPLN. FOR APPOINTMENT OF ARBITRATOR NO.13 OF 2024

VIKRAM SHAH

Versus

RIVA TRINDADE AND 3 ORS

... APPLICANT

... RESPONDENTS

Mr. Kaif Noorani, Advocate for the Applicant.

CORAM:- BHARAT P. DESHPANDE, J.

DATED :- 10th July, 2024

P.C.

1. Heard Mr. Noorani learned counsel appearing for the applicant.
2. This is an application for the appointment of arbitrator under Section 11(6) of Arbitration and Conciliation Act, 1996.
3. Vide Articles of Association executed on 01.04.2013, the parties agreed that in case of dispute arising out of the said agreement, the same shall be referred to the Arbitrator. Clause 35 of the said agreement refers to the intention of the parties to go before the Arbitrator.
4. Mr. Noorani submits that party to the first part expired and his legal heirs inherited the said property. Since, the partnership is not going forward and legal representatives are not cooperating, a notice

having an arbitration clause was issued to Respondents. However, vide their reply dated 11.03.2024, they refused to refer the matter to the Arbitrator.

5. Issue notice to Respondents returnable on 07.08.2024.
6. Apart from regular service, service by other modes is permitted.

BHARAT P. DESHPANDE, J.